CMC - The Courtyard Management Company (Rock Lane Farm) Ltd

MINUTES: CMC Residents Meeting 2016

Meeting Date: 11 December 2016
Chair: Ian Morrison
Minutes: Bruno Viegas

ACTIONS COMPLETED
ACTIONS IN PROGRESS
ACTIONS OUTSTANDING

The Courtyard Management Company (CMC)

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The Courtyard Management Company (CMC)

ATTENDANCE

ATTENDEES	Eileen Davis [1], Jean Francis [2], Ian Woodland & Bruno Viegas [3], Leah Queripel [4], Emily Fitzsimons & Shidaa Adjin-Tettey [5], Simon Fraser-Turner [8], Jacqueline Cox [9], Ian Morrison [12], Kevin Smith [13],
APOLOGIES	Alan Pike [6], Bart Shaw & Mike Tear [7], Timothy Nielson & Georgina Farrington-Montagu [11], Carl & Christina Moore [14],
NO COMMUNICATION	Malcolm & Julia Wynd [10],

VOTING

VOTE 1:	To retain the CMC 2016 underspend in the contingency fund for 2017 was unanimously approved
VOTE 2:	The 2017 budget proposed was unanimously approved
VOTE 3:	Members unanimously approved the updated CMC Guidance Notes for Use of The Courtyard and Communal Areas, and that they should be circulated to all residents
VOTE 4:	Members unanimously voted against extending the car parks
VOTE 5:	The guidance for use of the car parks was approved with 8 votes in favour and one abstention

ACTIONS AGREED

ACTION 1:	CMC to contact Andy and Eva Speight and alert them that they have been making undue payments, and arrange a refund
ACTION 2:	CMC to send invoices to members for the 2017 management charge
ACTION 3:	CMC to circulate the agreed procedure for dealing with late or non-payments and to place a copy on the Residents Library
ACTION 4:	CMC to seek legal advice on options for dealing with non-payments, and related communications with members
ACTION 5:	CMC to make available the history of management charges paid/not paid during the budget year
ACTION 6:	CMC to enquire with biofilter manufacturer if the pumping station is required or the biofilter can discharge directly to the watercourse
ACTION 7:	If pumping station is required, CMC to seek advice from qualified engineer on the options available for repairing the tear
ACTION 8:	CMC to circulate updated CMC Guidance Notes for Use of The Courtyard and Communal Areas to all residents
ACTION 9:	CMC to circulate the adopted guidance for use of car park to all residents and to make them available on the Residents Library
ACTION 10:	CMC to write to residents of 6, 7, 9 and the Farmhouse car park users asking if they would like to swap their allocated parking spaces, and arrange for numbering the spaces as agreed
ACTION 11:	Simon Fraser-Turner and Kevin Smith to enquire with electricians on the risk and costs, and advise all residents
ACTION 12:	Number 8 to move shed from CMC communal land/car park to own garden
ACTION 13:	Kevin Smith to assess the issue of the area under the archway and return with a proposed solution

The Courtyard Management Company (CMC)

1. MINUTES OF LAST MEETING

Ian Morrison confirmed all actions had been completed except for Action 1 [ACTION 1: CMC to update residents once transfer of titles from Thameside to CMC is complete] CMC are awaiting confirmation from the land registry that the Farmhouse freehold transfer is complete.

2. NEW PROPERTY OWNERS

Ian Morrison welcomed the new move-ins in 2016. Welcome to:

Ken & Jean Francis [2]

Leah Queripel [4]

Emily Fitzsimons & Shidaa Adjin-Tettey [5]

Timothy Nielson & Georgina Farrington-Montagu [11]

Carl & Christina Moore [14]

3. FINANCE AND BUDGET REVIEW 2016

Ian Woodland presented the 2016 budget and expenditure overview, which was circulated before the meeting on the Residents Library and in hard copy at the meeting. At the time of the meeting, the only payments due to CMC were water charges (invoices were sent only a few days before the meeting) and £18.50 due in management charges by one member. CMC had a sinking fund of £11,251.25 and underspent in 2016 by £2,805.45. On top of this, £1,026.00 was ring fenced in the Contingency Fund in case there was a need to pay for the bio filter discharge consent (as budgeted). Ian also noted that the former owners of Number 2 [Andy and Eva Speight] had on several occasions paid monthly instalments of the management charge and water charges after moving and so were due a refund [£586.28].

VOTE 1: To retain the CMC 2016 underspend in the contingency fund for 2017 was unanimously approved

ACTION 1: CMC to contact Andy and Eva Speight and alert them that they have been making undue payments, and arrange a refund

4. REVIEW AND AGREE BY VOTE BUDGET FOR 2017

Ian Woodland presented and explained the proposed budget for 2017, which was circulated before the meeting.

As part of the budget preparations, CMC sent a letter to the cottages connected to the biofilter in October alerting them that they are liable for a share of the costs of running, maintaining and repairing the biofilter, and would be sent an invoice at the beginning of 2017 for their share of the 2016 costs; no replies were received and so this potential income is not considered in the budget, which equates to a management charge of £900 per CMC member.

Ian Woodland reminded all of the Management Charge payment options:

- Payment in full by the end of January
- Payment of half by the end of January and the remaining by standing order over the 10 months - March to December
- Payment by standing order over the full 12 months of the year [Standing Order for January 1st to December 1st inclusive

VOTE 2: The 2017 budget proposed was unanimously approved

ACTION 2: CMC to send invoices to members for the 2017 management charge

5. MANAGEMENT CHARGE

The management team noted that during 2016 several members were at some point delayed in paying the Management Charge and generally there was no contact with CMC before members defaulted on payments. This resulted in CMC having to send successive reminders and talking to such members directly, which was time-consuming. It was put up for discussion if there should be an approved procedure for dealing with non-payment. Attendees considered that although we expect late/non payments to be resolved amicably, they should be taken seriously, and the following approach was agreed:

1) By 31st January all residents will have indicated how they intend to pay the management charge based on their method of payment as per the payment options in point 4 above.

2) By the end of the **first week of February**, if no payment or communication was received from a member, CMC will issue a letter reminding that member of the payment due and options for payment.

3) By the end of the **first week of March**, if still no payment or communication with a reasonable explanation is provided, CMC will send a letter to the resident reminding that member of the payment due and advising that **only one further warning** will be sent before starting legal proceedings to recover the payments due.

4) By the end of the **first week of April**, if still no payment or communication with a reasonable explanation is provided, CMC will issue a warning that it will start legal proceedings if all payments due are not made by the end of April.

It was also agreed that CMC should seek legal advice on the text of the letters above mentioned, and options and costs of legal proceedings to recover payments. Furthermore, it was agreed that CMC should make available all details of payments made/not made via the Residents Library.

ACTION 3: CMC to circulate the agreed procedure for dealing with late or non-payments and to place a copy on the Residents Library

ACTION 4: CMC to seek legal advice on options for dealing with non-payments, and related communications with members

ACTION 5: CMC to make available the history of management charges paid/not paid during the budget year

6. BIO-FILTER

The sewage from the 14 CMC properties, plus 7 Rock Lane Farm cottages, is treated in a small plant, which is owned [including most of the surrounding land] by CMC. It comprises a settling tank, which retains the solid waste and must be emptied regularly, a biofilter, which treats the liquid effluent, and a pumping station, which stores the treated effluent until it is discharged to a watercourse. The whole system contains five electric pumps and must be serviced regularly. In addition to servicing, there are costs from electricity use and a yearly fee for the water discharge consent. To operate the system, CMC is legally required to hold a water discharge consent and maintain the system in good operating order.

Ian Woodland informed members that, in the last service, the CMC sewage treatment manager noticed that the tear in the pumping station is more significant than previously assumed, and allows a large amount of groundwater to enter the tank. The sewage treatment manager advised that the tear would become worse over time and should be repaired, but was not qualified to propose and undertake the repair. Simon Fraser-Turner offered to provide a contact of a qualified engineer. Since it was unclear if the pumping station is an essential component of the treatment plant, it was agreed that CMC should take the following actions, and keep members informed on the situation:

ACTION 6: CMC to enquire with biofilter manufacturer if the pumping station is required or the biofilter can discharge directly to the watercourse

ACTION 7: If pumping station is required, CMC to seek advice from qualified engineer on the options available for repairing the tear

7. THAMESIDE APPLICATION AND BIO FILTER

As members are already aware, Thameside submitted a planning application to develop the site adjacent to the Farmhouse car park, which included installing an add-on to our biofilter [Thameside reserved the right to connect additional properties to our biofilter provided its capacity is not exceeded; the add-od is needed because the proposed development exceeds the existing biofilter capacity]; CMC and most residents submitted responses to the public consultation held by the council.

Ian Morrison informed members that a consultant for Thameside had submitted a rebuttal letter to the council addressing the issues raised in the CMC response, and suggested members might want to read it and respond to it. CMC responded to the council that despite the rebuttal letter, the issues raised still stand. It was agreed that CMC should not undertake any unnecessary work to the biofilter (except Actions 6 and 7) until there is clarity on what, if any, development Thameside will undertake on the site and implications for the biofilter. CMC will follow the issue closely and keep members informed.

8. BIO FILTER AND COTTAGES – CHARGES PLAN

CMC informed the residents that the cottages would be invoiced in January for their contribution towards bio filter costs. CMC will keep a record of payments received on the residents library and if needed will seek views on actions to take in case of none payment.

9. FUTURE PROPERTY SALES – CMC ROLE AND FEES

Jacqueline Cox advised that CMC currently produces a management pack and amends the CMC Deed of Covenant membership to enable sales of properties, for which it charges a £100 fee. However, in the last few sales CMC received lists of complex questions from the buyers' solicitors which the management company was not qualified to respond. CMC therefore proposed that advice from a solicitor should be sought to respond to complex questions, paid for by the seller. The CMC solicitor will then deal directly with the seller if required and charge the seller directly. The proposal was accepted.

10. CMC GUIDANCE NOTES FOR USE OF THE COURTYARD & COMMUNAL AREAS

Jacqueline Cox said that guidance notes have been developed in discussion with residents, and have been available on the Residents Library and sent to new residents during the conveyance process. The purpose of the notes is to set simple principles to ensure our site remains pleasant and a place where we enjoy living; the notes can be amended if issues arise or at the request of residents. Members were asked for comments and for approval before circulating the updated notes to all residents.

VOTE 3: Members unanimously approved the updated CMC Guidance Notes for Use of The Courtyard and Communal Areas, and that they should be circulated to all residents

ACTION 8: CMC to circulate updated CMC Guidance Notes for Use of The Courtyard and Communal Areas to all residents

11. UPDATE ON TRANSFER OF COMMUNAL LAND & FREEHOLD OF THE FARMHOUSE TO CMC

Ian Morrison informed members that Jacqueline Cox, having spoken to Richard Willis [solicitor], that the transfer of the common land had been completed and the transfer of the farmhouse freehold had been sent to the land registry. CMC is chasing Thameside to transfer the water discharge consent for the biofilter.

12. RESIDENTS PARKING

The directors informed members that several residents had raised before the meeting that the courtyard car park was very busy and sometimes there were no spaces available. Before the meeting, Mike Tear proposed a vote on extending the car park to the grassed area in The Courtyard car park, and the proposal was seconded by Alan Pike.

CMC had not investigated the feasibility of extending the car park as proposed, which might require planning permission from Aylesbury Vale Council and Rights of Way permission from Liscombe Park. In addition, there would be a need to ensure that buried utilities [electric cables, water and gas pipes] and a soak away would not be affected. Several residents noted that the grassed area was attractive and a natural barrier for CMC land, so would not want to see it paved, as it might encourage third parties to park their cars there.

Ian Woodland noted that the courtyard car park already had an additional parking space, created when the markings were changed several years ago. In addition, three additional spaces were created next to the gas tanks, and an additional space by the biofilter. It was agreed that there are sufficient parking spaces on site. Some members suggested that when someone has several visitors or additional cars, they should consider parking at other locations, such as the gym car park. The directors then introduced guidance for use of the car park developed by CMC, which it was suggested should reduce congestion.

CMC proposed voting on the need to extend the car parks, and on the guidance for use of the car parks.

VOTE 4: Members unanimously voted against extending the car parks

VOTE 5: The guidance for use of the car parks was approved with 8 votes in favour and one abstention

ACTION 9: CMC to circulate the adopted guidance for use of car park to all residents and to make them available on the Residents Library

Since there was no support for extending the car park, CMC will not investigate the feasibility of doing so.

Ian Woodland suggested that the parking spaces for properties 6, 7 and 9 The Courtyard, currently located under the Horse Chestnut tree, could be swapped with visitor spaces next to the grassed area. The swap would be implemented by changing the car park numbers, but not property deeds. Since the spaces in the farmhouse car park will also be numbered, residents should be given an opportunity to swap their places.

ACTION 10: CMC to write to residents of 6, 7, 9 and the Farmhouse car park users asking if they would like to swap their allocated parking spaces, and arrange for numbering the spaces as agreed

Any Other Business [AOB]

13. AOB1 – UPDATE ON LIGHTS IN COMMUNAL AREAS

The 2016 budget allocated funds for repairs to the lights in the communal areas. Ian Morrison explained to members that while some small repairs were carried out, and a light installed under the arch (with thanks to Eileen Davis for providing the electric supply), many lights were beyond repair:

- At least one was destroyed by a vehicle and several others are damaged beyond repair
- In some cases it is no longer possible to replace light bulbs
- The lights are installed in a circuit, so it will be easier and less expensive to replace them all
- Furthermore, other models/lighting solutions are less susceptible to damage unlike the present model of bollard lighting
- It will be possible to start using a light sensor so the lights are on only when needed

The cost of replacing the communal lights was estimated at £3,500-£4,000. Since this was not an urgent need, CMC proposed to seek views from residents on options in mid 2017, when the position on the biofilter [and likely costs] and the outcome of the Thameside planning application are clear.

14. AOB2 – LETTER FROM CALOR GAS

Many residents have received letters from Calor Gas advising that the gas meters must be earthed through a connection to fuse boxes. It was noted that this issue had been raised before, and was not a requirement at the time the properties were built and would be a matter for the individual

residents. Simon Fraser-Turner and Kevin Smith undertook to enquire with electricians on the risk and costs, and advise all residents.

ACTION 11: Simon Fraser-Turner and Kevin Smith to enquire with electricians on the risk and costs, and advise all residents

15. AOB3 – SHED OWNED BY NUMBER 8 CURRENTLY ON CMC COMMUNAL LAND/CAR PARK

Simon Fraser-Turner apologised for having placed the shed on CMC communal land/car park, since he had to move it quickly from another property, and undertook to move it into his own garden.

ACTION 12: Number 8 to move shed from CMC communal land/car park to own garden

16. AOB4 – AREA UNDER THE ARCH

Eileen Davies mentioned that the surface under the arch was very uneven and a trip hazard, particularly at night. Kevin Smith offered to assess the problem and propose a solution.

ACTION 13: Kevin Smith to assess the issue of the area under the archway and return with a proposed solution

Meeting End: 21.00